

# Local Level Election Act, 2017

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## Chapter-1

### Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Local Level Election Act, 2073."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the High Court of the concerned province.

(b) "Chairperson" means the Chairperson of the Rural Municipal Executive.

(c) "Minority" means such ethnic, linguistic and religious groups as determined by the Government of Nepal by publishing a notice in the Nepal Gazette, remaining under clause (a) of sub-section (1) of Article 306 of the Constitution, based on the then most recent national census.

(d) "Commission" means the Election Commission pursuant to Article 245 of the Constitution.

(e) "Deputy Chief" means the Deputy Chief of the Municipal Executive.

(f) "Vice-Chairperson" means the Vice-Chairperson of the Rural Municipal Executive.

(g) "Candidate" means a person nominated pursuant to Section 18 for any election of a local level.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(i) "Party" means a political party registered with the Commission for election purposes pursuant to the prevailing federal law.

(j) "Election" means the election of a local level, and the term also includes by-election.

(k) "Election Officer" means the Chief Election Officer and Election Officer appointed by the Commission pursuant to Section 7, and the term also includes the Assistant Election Officer.

(l) "Chief" means the Chief of the Municipal Executive.

(m) "Voter" means the following person whose name is included in the voter list pursuant to the prevailing federal law for the election as follows:-

(1) For the election of Chairperson, Vice-Chairperson, Chief and Deputy Chief, whose name is included in the voter list of the concerned Rural Municipality or Municipality,

(2) For the election of Ward Chairperson and Ward Member of the Rural Municipality or Municipality, whose name is included in the voter list of the concerned Ward,

(3) For the election of members to be elected from women, Dalit or minority communities in the Rural Municipal Executive or Municipal Executive, members of the concerned Rural Assembly or Municipal

Assembly,

(4) For the election of the Chief, Deputy Chief and members of the District Coordination Committee, the Chief, Deputy Chief, Chairperson and Vice-Chairperson.

(n) "Voter Identity Card" means the voter identity card with photograph provided by the Commission pursuant to the prevailing federal law for the purpose of voting.

(o) "Presiding Officer" means the Presiding Officer appointed pursuant to Section 11, and the term also includes the Assistant Presiding Officer.

(p) "Ballot Paper" means the ballot paper arranged for voting in an election, and the term also includes, where voting by electronic device is arranged, the ballot paper used in such electronic device or the digital ballot paper installed in such device.

(q) "Ballot Box" means the ballot box arranged by the Commission for keeping the marked ballot papers, and the term also includes, where voting is done by electronic device, the electronic device that records the vote cast thereby.

(r) "Ward Chairperson" means the Ward Chairperson of a Rural Municipality or Municipality.

(s) "Local Level" means the Rural Municipality, Municipality, and District Assembly.

(t) "Member" means the Ward Member of a Rural Municipality or Municipality, and the member of a Rural Municipal Executive or Municipal Executive, and the term also includes the Chairperson, Vice-Chairperson, Chief, Deputy Chief and Ward Chairperson.

(u) "Constitution" means the Constitution of Nepal.

## Chapter-2

### Election Program and Election System

3. Election: (1) The election of members shall be held two months before the expiration of the term of the Rural Assembly or Municipal Assembly. Provided that, in the case of the first election held after the commencement of this Act, the election shall be held on the date fixed pursuant to Section 4.

(2) If the post of Chief, Deputy Chief of the District Coordination Committee, Chairperson, Vice-Chairperson and Ward Chairperson of Rural Municipality and Chief, Deputy Chief and Ward Chairperson of Municipality falls vacant for any reason before the expiration of their term of office, such vacant post shall be filled by by-election on a date fixed by the Government of Nepal, after consultation with the Election Commission, for the remainder of the term. Provided that no by-election shall be held if the remaining term is less than one year. 4. Fixing Date of Election: (1) The Government of Nepal shall fix a date for conducting the election of the local level. Provided that the Government of Nepal shall consult the Commission before fixing the date of such election.

(2) If it is not possible to complete the election in a single phase on the date fixed pursuant to sub-section (1), separate dates may also be fixed to complete the election in two or more phases, with the election commencing from the fixed date.

(3) While fixing the election date pursuant to sub-section (2), it shall generally be fixed so that the election of all members of local levels within one province is completed in one phase.

(4) An election completed on separate dates pursuant to sub-section (2) shall be deemed to have been completed on the date fixed pursuant to sub-section (1).

(5) A notice of the fixing of the election date pursuant to sub-sections (1) and (2) shall be published in the Nepal Gazette. 5.

6. Election System: (1) In the election of Chairperson, Vice-Chairperson, Chief, Deputy Chief and Ward Chairperson, the first-past-the-post election system shall be adopted based on one vote for one post through the process of secret ballot.

(2) In the election of two women Ward members, including one Dalit woman, and two Ward members of the Ward Committee of the Rural Municipality or Municipality, the election system shall be adopted whereby two persons each securing the highest number of votes are elected based on one vote each for each member through the process of secret ballot.

(3) For the women members of the Rural Municipal Executive and Municipal Executive, the members of the concerned Rural Assembly or Municipal Assembly shall hold an election by secret ballot based on the election system whereby four persons securing the highest number of votes in the case of the Rural Municipal Executive and five persons securing the highest number of votes in the case of the Municipal Executive shall be elected from among themselves.

(4) For the members from the Dalit or minority community in the Rural Municipal Executive and Municipal Executive, the members of the concerned Rural Assembly or Municipal Assembly shall hold an election by secret ballot based on the election system whereby two persons securing the highest number of votes in the case of the Rural Municipal Executive and three persons securing the highest number of votes in the case of the Municipal Executive shall be elected.

(5) For the District Coordination Committee, the members of the concerned District Assembly shall elect one Chief, one Deputy Chief, at least three women, and at least one person from the Dalit or minority community from among the members of the Rural Assemblies or Municipal Assemblies within the concerned district.

(6) The election system for members from women, Dalit or minority communities pursuant to sub-sections (3) and (4) and the provisions relating to the election of the District Coordination Committee pursuant to sub-section (5) shall be as prescribed. Chapter-3

Chief Election Officer, Election Officer, Presiding Officer and Other Employees

7. Appointment of Election Officer: (1) For performing or causing to be performed the works to be done in the election pursuant to the Constitution, this Act and the prevailing federal law, the Commission shall appoint one Chief Election Officer in each district and Election Officers as required.

(2) The Commission shall appoint, in consultation with the Judicial Council, a District Judge as the Chief Election Officer, and, in consultation with the Judicial Service Commission, a gazetted officer of the Judicial Service as the Election Officer.

Provided that, if it is not possible to appoint only a gazetted officer of the Judicial Service as the Election Officer in this manner, a gazetted officer of other services within the civil service may also be appointed. 8.

Duties, Functions and Powers of Chief Election Officer: (1) It shall be the duty of the Chief Election Officer to coordinate and supervise the election-related works within the district assigned to him/her and give necessary instructions, remaining under the direction of the Commission.

(2) The Chief Election Officer shall also exercise the duties, functions and powers of the Election Officer of the local level located at the district headquarters of the district assigned to him/her. 9. Duties, Functions and Powers of Election Officer: (1) It shall be the duty of the Election Officer to perform or cause to be performed all works and proceedings relating to conducting the election of the local level assigned to him/her in a clean, impartial and free manner pursuant to this Act, remaining under the direction of the Commission and the Chief Election Officer.

(2) Other duties, functions and powers of the Election Officer shall be as prescribed.

(3) The Election Officer may delegate his/her powers as required to the employees deployed for election work. 10. Appointment of Assistant Election Officer and Other Employees: (1) The Election Officer may appoint Assistant Election Officers and other employees in the number as specified by the Commission.

(2) The Election Officer may deploy or assign employees of the Government of Nepal, Provincial Government and local levels, or employees of institutions owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal, or teachers or employees of universities or community schools, for any election-related work.

(3) While deploying employees and teachers for the election pursuant to sub-sections (1) and (2), they shall be deployed so that, in the case of an employee, it does not fall within the concerned ward of the place where his/her home address is located, and, in the case of a teacher, it does not fall within the concerned ward of the place of work and the place where his/her home address is located. 11.

Appointment of Presiding Officer: (1) The Election Officer may appoint employees of the Government of Nepal, Provincial Government and local levels, or employees of institutions owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal, or teachers or employees of universities or community schools, as Presiding Officer or Assistant Presiding Officer. (2) While appointing Presiding Officer or Assistant Presiding Officer pursuant to sub-section (1), the appointment shall be made so that, in the case of an employee, it does not fall within the concerned ward of the place where his/her home address is located, and, in the case of a teacher, it does not fall within the concerned ward of the place of work and the place where his/her home address is located. (3) The Presiding Officer and Assistant Presiding Officer appointed pursuant to sub-section (1) shall cause to be completed all works relating to conducting voting in a clean, impartial and free manner as specified by this Act and the rules made or orders issued under this Act. (4) Other duties, functions and powers of the Presiding Officer and Assistant Presiding Officer shall be as mentioned in the orders, directions and guidelines issued by the Commission. Chapter-4 Candidature and Nomination Paper 12. Qualification of Candidate: To become a candidate in an election, a person must fulfill the following qualifications:- (a) a citizen of Nepal, (b) has completed the age of twenty-one years, (c) has his/her name included in the voter list of the concerned ward of the Rural Municipality or Municipality, and (d) is not disqualified by any law. 13.

Disqualification of Candidate: Notwithstanding anything written elsewhere in this Act, the following persons shall be deemed disqualified to be candidates in an election:- (a) one who does not possess the qualification pursuant to Section 12, (b) a non-Nepali citizen, (c) one who is currently employed on a remunerative basis in the Government of Nepal, Provincial Government, or in an institution owned or controlled by the Government of Nepal or Provincial Government, or in an institution receiving grants from the Government of Nepal, (d) one who is currently employed on a remunerative basis in any local level or in an institution owned or controlled by a local level, or in an institution receiving grants from a local level, Explanation: For the purpose of this clause, "local level" also means the Village Development Committee, Municipality or District

Development Committee existing at the time of commencement of this Act. (e) one who has been punished according to the prevailing law relating to elections and has not served two years from the date of completing such punishment, (f) one who has been punished for an offense relating to corruption, rape, human trafficking and transportation, sale and distribution or export or import of narcotic drugs, money laundering, passport misuse, kidnapping, or other criminal offenses involving moral turpitude, or has been sentenced to life imprisonment or imprisonment for twenty years or more for any offense, and such judgment has become final, (g) one who has been punished with imprisonment for an offense relating to organized crime, or has been punished with imprisonment for less than twenty years for an offense relating to culpable homicide, and six years have not elapsed from the date of completing such punishment, (h) one who has been punished with imprisonment for an offense relating to caste discrimination and untouchability, witchcraft, or polygamy, and three years have not elapsed from the date of completing such punishment, (i) one who has been punished with imprisonment for five years or more for an offense other than those mentioned in clauses (f) and (g), and six years have not elapsed from the date of completing such punishment, (j) one who is on the blacklist pursuant to the prevailing law, for the duration of such period, (k) one who is in custody, for the duration of custody, (l) one whose mental balance is not sound, (m) one who is disqualified by the prevailing law. 14.

Candidature to be Void: (1) If, before the declaration of the election result, a question arises that a candidate is or has become disqualified pursuant to Section 13, and upon making necessary inquiry in that regard, the Election Officer determines that he/she is disqualified, the candidature of such candidate shall be void. (2) Before voiding the candidature pursuant to sub-section (1), the Election Officer shall give the concerned candidate an opportunity to submit his/her defense by providing at least twenty-four hours' time. 15. Vacation of Office: (1) If a person elected to the post of a member is determined by a court to have been disqualified pursuant to Section 13, he/she shall vacate such post. (2) Notice of the vacation of office pursuant to sub-section (1) shall be given by the Commission to the concerned person. (3) Provisions relating to filing complaints in court regarding the disqualification of a person elected to the post of a member shall be as prescribed. 16. Calculation of Age of Candidate: For the purpose of being a candidate in an election, in calculating the age of the candidate, he/she must have completed the age of twenty-one years by the date of filing the nomination paper. 17.

Nomination of Candidate: (1) A person not disqualified pursuant to Section 13 may be nominated as a candidate in an election held under this Act, as prescribed. (2) While nominating a candidate in an election pursuant to sub-section (1), there shall be one proposer and one seconder as follows:- (a) For the post of Ward Chairperson and Ward Member of a Rural Municipality or Municipality, a person whose name is registered in the voter list of the concerned ward, (b) For the post of Chairperson, Vice-Chairperson, Chief and Deputy Chief, a person whose name is registered in the voter list of the concerned Rural Municipality or Municipality, (c) For the members from women and Dalit or minority communities in the Rural Municipal Executive and Municipal Executive, a member of the concerned Rural Assembly or Municipal Assembly, (d) For the Chief, Deputy Chief and members of the District Coordination Committee, a member of the concerned District Assembly. (3) In relation to a candidate fielded by a party, such party must also give an official letter to him/her, and the office bearer of the party authorized to give an official letter pursuant to Section 18 shall also send a copy of such letter to the Election Officer. (4) While submitting nomination papers pursuant to sub-section (1), the party shall arrange for submitting nomination papers in such a way that fifty percent of the candidates for Chairperson and Vice-Chairperson, Chief and Deputy Chief, and Chief and Deputy Chief of the District Coordination Committee are women. Provided that this sub-section shall not apply if the party fields only one candidate. (5) While submitting nomination papers for the post of women

ward members of the Ward Committee of a Rural Municipality or Municipality pursuant to sub-section (1), the party shall arrange for submitting nomination papers in such a way that there is at least one Dalit woman candidate. Provided that this sub-section shall not apply if the party fields only one woman candidate for the post of ward member. (6) Where a person is nominated pursuant to sub-section (1), he/she must write his/her consent in the nomination paper and also affix his/her signature. (7) A person may be nominated by a maximum of two nomination papers for one election. 18.

Provision Relating to Authority to Certify Nomination Paper: (1) The name, surname, designation and specimen signature of the office bearer of the party authorized to provide the official letter of nomination of a candidate on behalf of the party shall be certified by the office bearer of the central executive committee or equivalent committee of such party, or the provincial committee designated by such committee, and shall be made available to the Commission within the period specified by the Commission before the final date for filing nomination papers for the candidate amended by the First Amendment., and the Commission shall send such details to the concerned Election Officer before the date fixed for filing nomination papers. (2) If a nomination paper is filed without complying with the procedure pursuant to sub-section (1), such candidate shall not be recognized as a candidate of that party. 19. Registration of Nomination Paper: (1) The nomination paper of a candidate shall be submitted to the concerned Election Officer by the candidate himself/herself, or by his/her representative, or by the proposer or seconder. (2) The concerned Election Officer shall examine whether the nomination paper submitted pursuant to sub-section (1) is in proper form according to this Act or not, and if it is in proper form, register it and give a receipt as prescribed to the person bringing the nomination paper for registration. (3) If a nomination paper brought for registration has no proposer or seconder, or the proposer or seconder is duplicated, or there is no proof of deposit of the security money as per this Act, or there is no signature or seal of the proposer, seconder or the person intending to be a candidate, or there are other procedural deficiencies, the Election Officer shall have the deficiencies corrected as far as possible and register such nomination paper.

If the person wishes to register the nomination paper without correcting the deficiencies that need to be corrected, the Election Officer shall note that fact in the nomination paper and give notice thereof to the person registering the nomination paper.

(4) After the time for registration of nomination papers is over, the Election Officer shall publish a list of candidates whose nomination papers have been registered at the date, time and place specified in the notice of the election program.

(5) Any candidate or his/her representative wishing to file a complaint regarding the qualification of any candidate mentioned in the list published pursuant to sub-section (4) may file a complaint with the Election Officer at the date, time and place specified in the notice of the election program.

(6) Other documents to be submitted by the candidate along with the nomination paper shall be as prescribed. 20. Scrutiny of Nomination Paper: (1) For scrutinizing the nomination papers registered pursuant to Section 19, the candidate or his/her proposer, seconder, or one representative authorized by him/her in writing must be present at the date, time and place specified in the notice of the election program.

(2) The Election Officer shall scrutinize the nomination papers of all such candidates in the presence of the persons mentioned in sub-section (1). Provided that this sub-section shall not be deemed to prevent the scrutiny of nomination papers and making decisions in accordance with the law in relation thereto, even if any candidate or his/her proposer, seconder or representative required to be present is not present.

(3) The Election Officer may suspend the proceedings relating to the scrutiny of nomination papers to be done pursuant to this section in the following circumstances:-

(a) if riots or other abnormal situations arise at the place of scrutiny at the time of such scrutiny, or

(b) if circumstances beyond control arise due to natural disaster.

(4) If the proceedings relating to the scrutiny of nomination papers are suspended pursuant to sub-section (3), the Election Officer shall fix a time and place and scrutinize the nomination papers as soon as possible.

(5) Other provisions relating to scrutiny of nomination papers shall be as prescribed. 21.

Circumstances for Invalidating Nomination Paper: The nomination paper of a candidate shall be invalidated in the following circumstances:- (a) if the candidate does not possess the qualification according to the Constitution and this Act, (b) if there is no consent of the person intending to be a candidate, or there is no signature or seal of him/her or his/her proposer and seconder, or the signature or seal is forged, (c) if the nomination paper is not registered within the time specified pursuant to sub-section (2) of Section 5, (d) if the nomination paper is not filed as written in Sections 17, 18 and 19, (e) if the security money pursuant to Section 62 is not deposited, (f) if other procedures under this Act are not complied with. 22. List of Candidates: After completing the scrutiny of nomination papers, the Election Officer shall prepare a list of candidates pursuant to the nomination papers that are in proper form according to the law, as prescribed, and shall publish one copy of such list in his/her office. 23. Withdrawal of Name: (1) If any candidate wishes to withdraw his/her name to have it removed from the list of candidates, he/she may withdraw his/her name by giving written notice to the Election Officer within the time specified pursuant to sub-section (2) of Section 5.

(2) The notice of withdrawal of name pursuant to sub-section (1) shall be submitted by the candidate himself/herself or by his/her representative. (3) Once the notice of withdrawal of name pursuant to sub-section (1) is submitted to the Election Officer, such notice shall not be voided or withdrawn. (4) If the Election Officer is satisfied about the notice submitted pursuant to sub-section (1), he/she shall remove the name of the withdrawing candidate from the list of candidates and shall immediately publish a notice of the removal of the name in his/her office. (5) In relation to a candidate who has filed candidacy on behalf of a party, if the office bearer of such party specified pursuant to sub-section (1) of Section 18 sends a writing to the Election Officer within the time specified pursuant to sub-section (2) of Section 5 for the withdrawal of his/her name, he/she shall not be retained as a candidate. 24.

Final List of Candidates: (1) After the time for withdrawal of names by candidates pursuant to sub-section (2) of Section 5 expires, the Election Officer shall prepare a list of the remaining candidates as prescribed, immediately publish one copy of such list in his/her office, and send one copy thereof to the Commission. (2) In the list pursuant to sub-section (1), names of candidates shall be written according to the Nepali alphabetical order, and if there are candidates nominated by a party, the name of such party shall also be mentioned in the address written in their nomination papers. 25. Uncontested Election: If, upon publishing the final list of candidates pursuant to Section 24, the number of candidates remaining for any post is equal to or less than the number to be elected, the Election Officer shall declare such candidate as elected unopposed for that post, as prescribed. 26. Election Symbol: (1) The Commission shall determine the election symbols to be distributed to parties and independent candidates for the election to be held under this Act. (2) The election symbols determined pursuant to sub-section (1) shall be provided to parties and candidates as prescribed. (3) No one other than the candidate of such party or the party shall be allowed to use the election symbol provided pursuant to sub-section (2). (4) After the election symbol has been provided to a candidate, such election symbol shall not be changeable if the candidate deserts his/her party or joins another party. If

such candidate is elected and the concerned party files a complaint with proof to the Commission, his/her membership shall be annulled. (5) While distributing election symbols pursuant to this section, the election symbol distributed by the Commission for election purposes shall be provided to the candidate of a party that remains registered with the Commission. If the Commission believes that any mistake has occurred or a difference has arisen while distributing election symbols in this manner, the Commission may change such symbol. (6) Notwithstanding anything written in sub-section (5), while distributing election symbols pursuant to this section, the election symbol of the concerned party shall only be distributed to a candidate of a party that has obtained recognition as a national party according to the prevailing federal law relating to political parties. While including the election symbols thus distributed in the ballot paper, they shall be included based on the number of votes obtained by such party in the proportional representation electoral system in the immediately preceding election of the House of Representatives.

27. In Case of Death of Candidate: (1) If a candidate nominated by a party, whose nomination paper has been determined to be in order and who has not withdrawn his/her name, dies before the publication of the final list of candidates pursuant to Section 24, and a written notice of such death is received from the election representative of such candidate, the concerned party, or any other person, and the Election Officer is satisfied of the matter, he/she shall immediately suspend other programs related to such election and inform the Commission thereof.

(2) If a candidate nominated by a party dies after the publication of the final list of candidates pursuant to Section 24, and a written notice of such death is received from the election representative of such candidate, the concerned party, or any other person, and the Election Officer is satisfied of the matter, he/she shall immediately suspend other programs related to such election and inform the Commission thereof.

(3) The notice of suspension of the program pursuant to sub-section (1) or (2) shall be posted by the Election Officer in his/her office for the information of other candidates as well.

(4) After receiving the information pursuant to sub-section (1), the Commission shall determine another program to complete the program relating to nomination of candidates as soon as possible without affecting the voting program of such election, and send it to the Election Officer.

(5) After receiving the information pursuant to sub-section (2), the Commission shall re-determine the date of voting and other programs under this Chapter for the election and send them to the Election Officer.

(6) Where the program has been suspended pursuant to sub-section (1) or (2), a candidate who has previously submitted a nomination paper and has been determined to be in order or whose name was in the final list of candidates shall not have to file a nomination paper again, and only the party whose candidate has died may nominate another candidate.

(7) Notwithstanding anything written elsewhere in this section, if the period for completing the work as per the election program exceeds seven days due to the death of a candidate necessitating the suspension of the election program, another program shall not be published again, and arrangements shall be made to complete the work relating to nomination of candidates in such a way that it does not obstruct the voting work within the time limit of the same program. 28. Identity Card for Candidate: The Election Officer shall provide an identity card as prescribed to candidates remaining in the final list pursuant to this Chapter. Chapter-5 Polling Station, Ballot Paper and Ballot Box

29.



Polling Station: (1) The Commission shall determine the required number of polling stations and sub-stations for the election. (2) If the Election Officer deems it necessary to increase or decrease the polling stations or sub-stations pursuant to sub-section (1), he/she may send a written communication to the Commission stating the necessity and justification for such increase or decrease, and if the Commission deems the matter reasonable, it may increase or decrease the polling stations or sub-stations. (3) If necessary, the Election Officer may, with prior approval of the Commission, move a polling station or sub-station to a convenient or practically suitable location. (4) A notice of the determination, increase, decrease or relocation of polling stations and sub-stations pursuant to sub-sections (1), (2) and (3) shall be published in the Nepal Gazette. (5) Within the area of one polling site, there may be one or more polling stations, sub-stations or polling booths as required. (6) The basis, procedure and other provisions for determining polling stations, sub-stations or polling booths shall be as prescribed. 30. Ballot Paper: (1) For the election, the ballot paper shall be as specified by the Commission. (2) In the ballot paper pursuant to sub-section (1), there shall be the election symbol assigned for each candidate and a compartment for voting on such symbol. (3) Other provisions relating to ballot paper shall be as prescribed. 31. Ballot Box: (1) For voting, the ballot box shall be as specified by the Commission. (2) Other provisions relating to ballot box management shall be as prescribed. Chapter-6 Voting 32. Time of Voting: On the date of voting, the time for voting shall be as specified in the notice pursuant to sub-section (2) of Section 5. 33.

Voting: (1) A voter whose name is included in the voter list of any ward of a Rural Municipality or Municipality shall be entitled to vote only at the polling station designated for the concerned ward of that same Rural Municipality or Municipality. (2) A voter must vote at the polling station assigned to him/her according to the voter list. (3) A voter must vote by marking a vote on the ballot paper designated for the election at the polling station assigned to him/her for voting. (4) No person other than the voter whose name is registered in the voter list shall vote in the name of such voter. (5) No voter shall vote more than once for one post or at more than one polling station in the same election. 34. Procedure of Voting: (1) The Presiding Officer shall give a ballot paper to a voter present at the polling station for voting after completing the procedure as prescribed. (2) Before giving the ballot paper to the voter, the Presiding Officer shall mention the details as prescribed in the voter list and give the ballot paper as determined by the Commission. (3) The voter must vote by affixing the stamp or mark as prescribed on the ballot paper in a secret manner. (4) While marking a vote, the voter shall secretly affix the stamp or mark pursuant to sub-section (3) in any one or more compartments designated for marking votes on the ballot paper as determined by the Commission, vote as prescribed, and drop the ballot paper into the ballot box. (5) Notwithstanding anything written elsewhere in this Act, where electronic devices are used for the purpose of voting, the voter must vote by means of the electronic device as prescribed. 35.

If a Person Comes to Vote by Concealing Identity: (1) If a person comes to obtain a ballot paper to vote in the name of another voter by concealing his/her own identity, a candidate or his/her representative or a voter of the same polling station may object to the Presiding Officer by depositing a security of one hundred rupees, as prescribed. (2) If an objection is made pursuant to sub-section (1), the Presiding Officer shall inquire into the necessary matter and make a decision immediately, and shall immediately record the objection made and the decision thereon in the decision book as prescribed. (3) If the objection pursuant to sub-section (1) is determined to be correct, the Presiding Officer shall return the security amount to the concerned person, and if the objection is found to be false, such security amount shall be forfeited. (4) If the objection pursuant to sub-section (1) is determined to be correct, the Presiding Officer may fine the person coming to vote by concealing identity according to the prevailing federal law relating to election offenses and penalties. 36. Entry into Polling Station: (1) The Presiding Officer shall not allow entry into the polling station to any person

other than the following:- (a) Voters, (b) A candidate or one election representative or polling representative of his/her, (c) Observers permitted by the Commission, (d) Persons permitted by the Commission or the Election Officer or the Presiding Officer, (e) A child up to a maximum of five years accompanying a female voter, (f) A member of the same household accompanying a blind or physically disabled voter for assistance. (2) Notwithstanding anything written in clause (a) of sub-section (1), the Presiding Officer shall not allow entry into the polling station to a person who is carrying any type of weapon or who has consumed intoxicating substances, even if he/she is a voter. (3) After the voting time expires, no voter other than those who have entered the polling station and are yet to vote shall be allowed to enter or remain in the polling station. 37. Inspection Possible: If any voter remains in the place for marking votes for more than a reasonable time, or if the Presiding Officer has any suspicion, he/she may enter the place for marking votes and conduct an inspection. 38.

Disabled Voter: If a voter, due to blindness or physical disability or any other reason, is unable to mark a vote by himself/herself, and requests permission to bring along a member of his/her same household to assist in marking the vote, or requests the Presiding Officer to assist in marking the vote, and the Presiding Officer finds it appropriate, he/she may permit such household member to enter the place for marking votes with the voter, or the Presiding Officer may mark the vote on the voter's ballot paper according to the voter's wish. 39. If Ballot Box, Electronic Device is Damaged or Tampered With: (1) If a ballot box used for voting at a polling station or an electronic device placed for voting is damaged accidentally or is deliberately tampered with and damaged, the Presiding Officer shall immediately report the incident to the concerned Election Officer. (2) If a ballot box used for voting that has been delivered to the Election Officer is seized in any manner or deliberately tampered with and damaged, or is damaged accidentally, or upon receiving a report pursuant to sub-section (1), the Election Officer shall immediately cancel the voting of such polling station and immediately report it to the Commission. (3) In a polling station where voting has been cancelled pursuant to sub-section (2), the Election Officer shall fix a date and time for re-voting and immediately publish a notice thereof at such polling station. 40. Voting May be Postponed in Special Circumstances: (1) If, at any polling station, riots or other abnormal situations arise, or electronic devices cannot be operated for any reason, or due to disturbance, natural disaster, or any reason beyond control, the Presiding Officer is satisfied that voting work cannot be carried out, he/she may immediately postpone the voting work at such polling station and publish a notice thereof at the same place. (5) In the case of a polling station where voting has been canceled under subsection (4) by the Commission, the Election Officer shall determine the place, date, and time for re-polling and publish a notice. 51.

Circumstances for a ballot paper to be invalid: (1) A ballot paper shall be invalid in the following circumstances: - (a) If it does not bear the signature of the concerned Polling Officer, (b) If the vote is indicated by a thumbprint, or by a mark or stamp other than a mark or stamp as per subsection (3) of Section 34, (c) If the voting indication mark is smudged or torn in a manner that makes it illegible, (d) If the vote is indicated elsewhere without indicating the vote in the box containing the election symbol of the candidate, (e) If a vote is indicated only on an election symbol for which there is no candidate, (f) If separate votes are indicated in the boxes containing the election symbols of more candidates than the number to be elected, (g) If the vote is indicated in such a way that the voting indication mark falls within the box containing the election symbols of more than one candidate, (h) If it is returned to the Polling Officer without indicating a vote, (i) If no vote is indicated on the election symbol of any candidate, (j) If voting is done using a ballot paper other than the ballot paper prescribed by the Commission, (k) If it is kept outside the ballot box, (l) A forged ballot paper, or (m) A ballot paper that the Commission has specified to be invalid. (2) Notwithstanding anything written in subsection (1), in a situation where multiple candidates are to be elected from a single ballot paper, only the

vote for the position for which the vote is invalid shall be invalidated, and the other ballot papers must be counted. 52. Recounting of votes: (1) Before the counting of votes for a polling station is completed or before the counted ballot papers are sealed, any candidate or their election agent or counting agent may submit a written petition immediately to the Election Officer with reasons requesting a recount of some or all of the ballot papers. (2) Upon receiving a petition under subsection (1), the Election Officer shall immediately register such petition, and if it appears necessary to conduct a recount, may conduct a recount. (3) If a recount is not necessary under subsection (2), the Election Officer shall make a decision to that effect and shall provide notice of such decision to the candidate, their election agent, or counting agent present at that location before the declaration of the election result. 53.

Decision by lot in case of a tie: If, after the counting of all ballot papers cast in an election for any member is completed, the valid votes received by two or more candidates are equal and the elected candidate cannot be determined, the Election Officer shall decide by drawing lots among the candidates who have received an equal number of votes. The candidate chosen by such a lot shall be deemed to have received one additional vote. 54. Publication of election result: (1) After the completion of the counting of votes for any election, the Election Officer shall prepare a counting table as prescribed and publish the election result as prescribed, and shall immediately send one copy of such result table to the Commission. (2) When publishing the election result under subsection (1), the Election Officer shall declare the candidate who has received the highest number of valid votes as elected, and shall issue a certificate of election as prescribed. (3) Notwithstanding anything written in subsection (2), for the following positions, the candidates specified below who receive the highest number of votes shall be declared elected: - (a) For the position of female ward member of the Ward Committee of a Rural Municipality or Municipality, one candidate who receives the highest number of votes; for the position of Dalit female member, one candidate who receives the highest number of votes among those who have filed candidacy; and for the position of other ward member, two candidates who receive the highest number of votes, (b) For the position of female member of the Rural Executive, four candidates who receive the highest number of votes, (c) For the position of member from the Dalit or minority community of the Rural Executive, two candidates who receive the highest number of votes, (d) For the position of female member of the Municipal Executive, five candidates who receive the highest number of votes, (e) For the position of member from the Dalit or minority community of the Municipal Executive, three candidates who receive the highest number of votes. (4) After the publication of the election result, the Election Officer shall prepare a report containing the prescribed details related to the election and send it to the Chief Election Officer, and the Chief Election Officer shall send it to the Commission as soon as possible. 55.

Date of election: In the case of an election held before the expiry of the term of the Village Assembly or Municipal Assembly under subsection (1) of Section 3, the newly elected member shall be deemed to have been elected on the date immediately following the expiry of the term of the members in office at the time of the election. Provided that, in the case of the first election held after the commencement of this Act, the newly elected member shall be deemed to have been elected on the seventh day of the election date specified under subsection (1) of Section 4. Chapter-8 Representative of Candidate 56. Election agent: (1) If any candidate appoints a person as their election agent for the election, written notice thereof must be given to the Election Officer. (2) The candidate may, at any time, revoke the appointment of the election agent appointed under subsection (1) and appoint another election agent, and notice thereof must be given immediately to the Election Officer. (3) The qualifications of an election agent shall be as prescribed. 57. Duties of election agent: It shall be the duty of the election agent appointed under Section 56 to perform the work that is mentioned in this Act and the rules made under this Act as tasks to be performed by an election

agent. 58. Polling agent and counting agent: (1) The candidate or their election agent may appoint a polling agent for each polling station as prescribed, and written notice thereof must be given to the Polling Officer and the Election Officer. (2) The candidate or their election agent may appoint a counting agent to be present at the counting site as prescribed, and written notice thereof must be given to the Election Officer. (3) The candidate or their election agent may, at any time, revoke the appointment of the polling agent or counting agent appointed under subsection (1) or (2) and appoint another polling agent or counting agent. (4) When another polling agent is appointed under subsection (3), the Polling Officer shall be informed immediately, and when another counting agent is appointed, the Election Officer shall be informed immediately. (5) The number and qualifications of polling agents and counting agents shall be as prescribed. 59.

Duties of polling agent and counting agent: (1) It shall be the duty of the polling agent appointed under subsection (1) of Section 58 to perform all the work that a polling agent is required to do at the polling station under this Act and the rules made under this Act. (2) It shall be the duty of the counting agent appointed under subsection (2) of Section 58 to perform all the work that a counting agent is required to do under this Act and the rules made under this Act. 60. If candidate or any representative is absent: If an election agent, polling agent, or counting agent is not appointed under this Act and the rules made under this Act, or if the candidate or any of their representatives is not present in a situation where they are required to be present, or if any of them fails to perform the work they are required to do, the work of voting or counting shall not be halted solely for that reason, and such work shall be deemed to have been done in accordance with the law.

Chapter-9 Miscellaneous 61. Provision regarding tendered ballot papers: (1) If it appears from evidence presented that a person has already taken a ballot paper or voted in the name of another voter, and that the person coming later to vote is the actual voter, the Polling Officer shall give such voter a tendered ballot paper. When a tendered ballot paper is given in this manner, after the voter has indicated their vote on such ballot paper, such ballot paper shall not be placed in the ballot box but shall be placed in a separate envelope kept for that purpose. (2) The procedures for giving, keeping, and other related actions regarding tendered ballot papers under subsection (1) shall be as prescribed. (3) When counting votes under this Act, the tendered ballot papers kept in a separate envelope under subsection (1) shall not be counted at that time. If an election petition is filed and the court determines that it is necessary for deciding such a petition, the court may order the counting of such tendered ballot papers as well. 62. Requirement to deposit security: (1) To be a candidate in a local level election, the following amounts of security deposit must be submitted: - (a) Five hundred rupees for ward member, (b) One thousand rupees for ward chairperson, (c) One thousand five hundred rupees for Chairperson, Vice-Chairperson, Mayor, and Deputy Mayor. (2) Notwithstanding anything written in subsection (1), there shall be a fifty percent concession for women, Dalit or minority communities, or economically disadvantaged candidates.

Explanation: For the purpose of this subsection, "economically disadvantaged person" means a person recommended by the concerned local level as having an annual family income of less than fifty thousand rupees. 63. Forfeiture of security deposit: (1) The security deposit of a candidate who receives less than ten percent of the total valid votes cast in the election shall be forfeited. Provided that this shall not apply to an elected candidate.

(2) Except in the situation where the security deposit is forfeited under subsection (1), the security deposit submitted by other candidates and persons whose nomination papers were not accepted or who withdrew their names must be claimed back by the concerned person within ninety days from the date of declaration of the election result.

(3) If the security deposit is not claimed back within the period under subsection (2), the amount of such

deposit shall be credited to the Consolidated Fund. 64. Election campaign expenses: (1) The maximum amount of expenses that a party or candidate may incur in an election shall be as specified by the Commission by publishing a notice in the Nepal Gazette.

(2) The party, candidate, or their election agent shall maintain a record of all expenses incurred during the election period in the prescribed format and as prescribed. Explanation: For the purpose of this subsection, "election period" means the period from the date of registration of the candidate's nomination paper to the date of declaration of the result of such election.

(3) The total expenses incurred by any party or candidate in the election shall not exceed the expense limit specified under subsection (1).

(4) The party, candidate, or their representative shall submit the statement of election expenses under subsection (2) to the office designated by the Commission within thirty days from the date of declaration of the election result. The office receiving such expense statement shall forward it to the Commission.

(5) The Commission may impose a penalty under the prevailing federal law relating to the Election Commission on a party or candidate who fails to submit the statement of election campaign expenses within the prescribed time under this section. 65.

Confidentiality of election-related documents or records: (1) Among the documents used in an election or, if voting was done through electronic devices, such records, after being opened and inspected as necessary for the purpose of counting, shall be sealed after the counting work is completed and kept in the custody of the designated officer. (2) The counterfoils of ballot papers sealed under subsection (1), the voter list used in voting, and the sealed envelopes, bags, sacks, or records containing valid and invalid ballot papers may only be opened and inspected by a court in the course of a petition filed under prevailing law. (3) After opening and inspecting under the order of the court under subsection (2), such court shall reseal and keep those documents or records as they were. No authority or body other than the court shall have the right to open and inspect such sealed envelopes, bags, or sacks. (4) The documents or records mentioned in this section shall be kept safe for three months from the date of the final decision of the case, if a case is filed, and from the date of expiry of the period for filing a petition, if no case is filed. 66. Confidentiality not to be breached: (1) Except when authorized by law, no employee deployed for election-related work, or candidate, election agent, polling agent, counting agent, or any other person shall tell, write, or in any manner disclose or publish the vote indicated by a voter on a ballot paper, or any other matter known to them or that has come to their knowledge in that connection, to anyone. (2) Notwithstanding anything written in this Act or any other prevailing law, in any legal proceedings conducted under this Act, no witness or person shall be questioned as to whom they voted for in the election or who voted for whom. 67. Power to issue orders and give directions: (1) In addition to the matters written in this Act and the rules made under this Act, the Commission may, subject to this Act and the rules made under this Act, issue necessary orders regarding elections, and such orders must be published in the Nepal Gazette. (2) The Commission may give necessary directions to employees deployed for election work for the conduct of elections. (3) It shall be the duty of the Government of Nepal, Provincial Government, Local Level, government offices and bodies, government, semi-government, and non-government organizations and bodies, parties, candidates, their representatives, persons engaged in the publicity of election-related activities, and employees deployed for election work, among others, to comply with the orders and directions issued by the Commission under this section. 68.